

# Sachin Tomar v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 13 March 2024 · 2024:AHC:44702-DB · WRIT - C No. - 6007 of 2024 · **Disposed of; objection under clause 6.8; no coercion pending final assessment.**

## HEADNOTE

A writ against a one-time settlement notice founded on a provisional assessment of alleged electricity theft was disposed of without a finding on liability. The dispute being factual, the purchaser-petitioner was left to file an objection within two weeks, to be decided by the Executive Engineer strictly under clause 6.8 of the U.P. Electricity Supply Code, 2005, and coercive action was stayed until the final assessment order.

## FACTUAL SUMMARY

Sachin Tomar bought the property by sale deed dated 22 November 2022. The electricity department issued a one-time settlement notice for dues based on a provisional assessment of alleged electricity theft. Tomar said he was not liable for the theft, that he had filed an objection, and that the Executive Engineer had on 29 March 2023 ordered an enquiry. The department continued to press for payment. Its counsel told the Court that no final assessment had yet been passed, and a copy of the provisional-assessment notice was given to Tomar in Court.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.8

Objection to provisional assessment before final order

#### HOLDING

The writ was disposed of without examining liability for the alleged theft dues, the dispute being factual and requiring evidence. The petitioner may, within two weeks, file an objection to the provisional-assessment notice, a copy of which was supplied in Court, and the Executive Engineer shall decide it strictly in accordance with clause 6.8 of the U.P. Electricity Supply Code, 2005. Until the final assessment order is passed, no coercive action shall be taken on the impugned one-time settlement notice or the provisional-assessment notice. ¶ 4-5

## PRINCIPLE TAGS

**assessment-6.8-alternate-remedy** Writ jurisdiction was declined because liability for the alleged theft dues turned on evidence, and the petitioner was relegated to an objection to be decided under clause 6.8. ¶ 4

**fresh-objection-under-clause-6.8** The petitioner was left at liberty to file, within two weeks, an objection against the provisional-assessment notice, a copy of which was made available in Court. ¶ 4

**6.8-procedure-mandatory** The Executive Engineer was directed to decide the objection strictly in accordance with the procedure stipulated in clause 6.8. ¶ 4

## NOT DECIDED — NEGATIVE AUTHORITY

**NOT DECIDED — WHETHER THE PETITIONER, AS PURCHASER UNDER THE SALE DEED OF 22 NOVEMBER 2022, IS LIABLE FOR THE ALLEGED THEFT DUES COVERED BY THE PROVISIONAL ASSESSMENT.**

Left to the Executive Engineer on the clause 6.8 objection; the writ court declined to appreciate the evidence. ¶ 4